



Merchant Marine **Notice**

Panama Maritime Authority
General Directorate of Merchant Marine
Control and Compliance Department

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(DCCM)
V.04

KEY DETAINABLE DEFICIENCIES FOR PANAMA-FLAGGED VESSELS UNDER USCG PORT STATE CONTROL – 2025

No.: MMN-04/2026

1. Purpose:

The purpose of this Merchant Marine Notice is to inform all Shipowners, Operators, Legal Representatives, Masters, Recognized Organizations (ROs), and Shipping Agencies of detainable Port State Control (PSC) deficiencies identified by the United States Coast Guard (USCG) on Panamanian-flagged vessels arriving at or operating within United States jurisdictional waters in 2025, with the objective of mitigating detention risk, enhancing vessel safety, and maintaining the high-performance standing of the Panama Ship Registry.

2. Applicability:

- 1) All vessels flying the Panamanian flag, regardless of size, type, or trading area, that have undergone PSC inspections or detentions in arriving at or operating within United States ports.
- 2) Shipowners, Operators, Masters, Legal Representatives, and Port Agents responsible for vessel compliance, navigation safety, and port operations.

3. Detainable Deficiencies Identified under USCG Port State Control (PSC) – 2025 for Panamanian-Flagged Vessels.

The Panama Maritime Authority (PMA) is closely monitoring detainable deficiencies reported by the United States Coast Guard during PSC inspections in 2025, as part of its ongoing commitment to fleet performance, safety, and regulatory compliance.

The following summary outlines the statutory deficiencies that led to vessel detention.

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Code	Nature deficiency	Deficiency comments
01102	Cargo Ship Safety Construction (including exemption)	PSCO's found SOLAS Safety Construction Certificate expired.
02105	Steering gear	The ship is operating on a full-term safety construction certificate and there was no evidence to indicate that this repair had been accepted by RO/Flag.
03105	Covers (hatchway, portable, tarpaulins, etc.)	PSCOs observed improper foam material used as a gasket on #3 hold starboards aft and #1 hold starboard forward. PSCOs also observed wasted ventilation cover gasket channels preventing weather tightness.
06107	Cargo operation	PSCO observed that while testing the system the pneumatic line between the suction pump and the position selector device was taped into place, due to improper tubing size and broken t-fitting, this was discovered after multiple attempts were made to get an accurate test gas reading of 7.5% (lower explosive limit) LEL but only a max of 5.5% LEL was observed.
06107	Cargo operation	The PSCO observed that there was aged paint covering the mating surface between the auxiliary setting device and the pilot on cargo tanks number 2 and 3, on the port side, indicating it had been recently removed or installed. the ship's records indicate that the last time the auxiliary setting devices were removed with no record of them being reinstalled. based on these logs, painted mating surfaces, and statements by the crew, the auxiliary setting devices were installed, and the vessel operated with the increased "in harbor" settings prior to their arrival into port.
06107	Cargo operation	PSCO observed fusible plugs on port and starboard manifolds were painted over. Extensive corrosion that encapsulated the fusible plugs were observed on tanks 2, 3, and 4.
06107	Cargo operation	PSCO observed 5 of the 6 water spray nozzles clogged and unable to provide uniform, adequate water spray to the horizontal surface of the tank top. After allowing the crew time to clear nozzles, a retest of the system found 3 nozzles still providing inadequate. Coverage of the tank top.
07105	Fire doors/openings in fire resisting division	The deck level stairway door was missing completely and 02 additional stairway doors were held open using hold back devices in the main stairway.
07106	Fire detection and alarm system	PSCOs observed the smoke extraction detection system for the cargo holds as nonoperational.
07109	Fixed fire extinguishing installation	The vessel's crew stated they have been aware of this issue since and had not reported the issue to their flag or classification society. A review of vessel's SMS stated that any non-conformity shall be immediately reported to vessel's DPA no such report was made.
07113	Fire pumps and its pipes	The emergency fire pump was inoperable.
07126	Oil accumulation in engine room	PSCO observed excessive amount of oily water mixture in the bilge, excessive oil accumulation, oil rags and excessive trash scattered throughout the engine room.
07126	Oil accumulation in engine room	PSCO observed approximately 2 inches of pooling lube oil leaks under generators 1, 2, and 3.

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07126	Oil accumulation in engine room	PSCO observed extensive oil collections in the engine room PSCO observed spraying oil coming from generator, leaking dirty oil from #2 steering pump, black oil collected in barrel and in sink within oil purifying room, oil collected in containment around tanks, thick black oil in containment above the incinerator, and oil in containment and on deck floors near bilge. Additionally, PSCO observed dirty rags, some heavily soaked with oil, in all spaces within the engine room, including the purifying room and ECR. PSCO observed dirty and clean combustible materials stored throughout engine room, as well as other oiled combustibles sheets, straps, and wood). Overall cleanliness of engine room was substandard.
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Code	Nature deficiency	Deficiency comments
08106	Inert gas alarm	Crew was unable to demonstrate to the PSCO satisfactory operation or testing of emergency shutdowns, alarms, and equipment as a part of the fuel handling and delivery system as required per IGF Code.
09210	Machinery	PSCO observed a substantial leak on the MDE salt water cooling pump.
09213	Gas instruments	The Administration shall take steps to ensure that crews of ships are trained in the use of such instruments. PSCOs observed the vessel missing required equipment to operate the gas monitoring equipment. PSCOs also observed the Chief Mate not having the proper knowledge to utilize the gas monitoring equipment.
10137	Long-range identification and tracking system (LRIT)	PSCOs observed the last LRIT conformance test expired on 09JUL24.
10199	Other (navigation)	Steering hydraulic oil reservoir empty and the crew stated that they did not have any hydraulic oil on board to refill the reservoir.
11134	Operation of Life Saving Appliances	PSCO observed starboard lifeboat unable to start and operate as required. Observed lifeboat sputtering and the inability to remain running.
14608	Incinerator incl. operations and operating manual	PSCO observe the incinerator's refractory was cracked and damaged and residual ash left in incinerator but no record of incinerator usage.
15106	Shipboard operations	The technical and/or operational nature of deficiencies provide objective evidence of a serious failure, or lack of effectiveness, of the implementation of the ISM Code. A safety management audit carried out by the Administration or the RO, with a corresponding report of findings satisfactory to the OCMI must be submitted prior to clearance of this deficiency and release from detention.
15106	Shipboard operations	The PSCO identified multiple emergency situations/drills that shall be carried out every 3 months in accordance with their Safety Management System, including MEOH pipe burst and leakage, gas detection, accidental MEOH spill in the engine room, and gas detection in double wall piping. The PSCO was not provided documentation that the drills required by the SMS were being conducted.
15107	Emergency preparedness	The technical and operational nature of the deficiencies noted below provide objective evidence of a serious failure of the implementation of the ISM code. An external audit report satisfactory to the coast guard must be submitted prior to clearance of this deficiency.

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15107	Emergency preparedness	PSCO observed emergency escape without appropriate rope and harness provided inside, rope was not mounted on pulley system installed, and was instead looped unsecured around ladder arm, and harness was not available in space
15108	Reports of non-conf., accidents & hazardous occur.	PSCO observed a lack of reporting of non-conformities as per the SMS. non-conformity forms, corrective action requests, and found issues in the engine room were not completed or routed up to company, nor were they sent to company on required timeline, knowledge of this section of the SMS was heavily lacking in the crew and captain.
15109	Maintenance of the ship and equipment	The technical and operational nature of deficiencies provide objective evidence of a serious failure or lack of effectiveness of the implementation of the ISM code. A safety management audit carried out by the administration, or the RO, with a corresponding report of findings satisfactory to the OCMI must be submitted prior to the clearance of these deficiencies and release from detention.

Code	Nature deficiency	Deficiency comments
15109	Maintenance of the ship and equipment	Due to the deficiencies of a technical and/or operational nature identified below which individually or collectively provides objective evidence of a serious failure, or lack of effectiveness of the ISM Code, an external audit shall be conducted by the Flag Administration before vessel will be released from its detention to determine whether vessel is operating in compliance with the ISM Code. A copy for the completed external audit shall be provided for USCG review prior to departure from the port.
15110	Documentation-ISM	PSCO observed hand over check list for captain and chief engineer that appeared falsified, as sections were marked as in good working order when equipment is clearly in disrepair and has been for longer than 5 months. Some non-conformities that were identified and sent to company, were not addressed with class. Including the condition of the cracked MGO storage tank, was not addressed with class despite report back in august 2024. Additionally check lists for enclosed spaces were falsified, as they stated respiratory protection was provided to workers an PSCO observed work being done without respiratory protection inside enclosed space in engine. Overall recordkeeping and documentation are substandard.
18420	Cleanliness of engine room	PSCO observed a lack of appropriate maintenance and cleaning in engine room, as well as storage of hazardous materials inappropriately or a saturated nitrogen and refrigerant within the ECR, as well as failed to manage the proper disposal of oily rags or to clean spills of oil a cross engine rom additionally PSCO observed the oiler with the enclosed space inside the engine without respiratory protection, despite checklists indicating issuing of respiratory protection. PSCO observed cigarette), ash trays, and lighters inside ECR, confirmed with chief engineer that smoking occurred within the ECR, where smoking was not permitted.

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The following summary describes the top 5 deficiencies code recorded in the Panamanian fleet:

07105	Fire Safety /Fire doors-openings in fire-resisting divisions
1	Fire doors in main vertical zones bulkheads, galley boundaries and stairway enclosures, other than power-operated watertight doors and those which are normally locked, shall satisfy the following requirements: the doors shall be self-closing and be capable of closure against an angle of inclination of up to 3.5 degrees opposing closure. PSCO observed A-0 fire door in main stairway incapable of closing, on its own.
2	The speed of door closure shall, if necessary, be controlled so as to prevent undue danger to persons. PSCO observed safety crash bar on sliding failed to operate.
3	Stairways and lift trunks which penetrate more than a single deck shall be surrounded by at least "A-0" class divisions and be protected by self-closing doors at all levels. PSCO observed door leading to stairway on "C" deck was not self-closing.
4	Self-closing fire doors of the same fire integrity standards shall be fitted in the enclosure. PSCO observed that the door to the steering room did not close and latch when released.
5	Doors required to be self-closing shall not be fitted with holdback hooks. PSCO observed the following self-closing door held back with a zip-tie: door to the general service office in the cargo engine control room.
6	Fire doors in main vertical zone bulkheads and stairway enclosures shall be capable of remote and automatic release from a continuously manned central control station, either simultaneously or in groups, and also individually from a position on both sides of the door. The fire door did not automatically release during fire drill.
7	Electrical installations shall be such that: the safety of passengers, crew and ship from electrical hazards will be ensured. Dead-end wires were observed back stage in the theatre room, deck 03 starboard side. Dead wires were resolved in accordance with their ship's policies.
8	PSCO observed fire door to steering gear room has gasket heavily worn. Repaired on scene and tested for operation.
9	PSCO observed hold back hook on an A-60 class self-closing fire door in the aft engine room.
10	"The fire integrity of the divisions shall be maintained at openings and penetrations." PSCO observed a 1cm by 1ft gap in a category A boundary between the engineer's workshop and the engine room.

07126	Fire Safety/Oil accumulation in engine room
1	The purpose of this regulation is to prevent the ignition of combustible materials or flammable liquids. For this purpose, the following functional requirements shall be met: means shall be provided to control leaks of flammable liquids. PSCO found oil leaking on the #3 auxiliary engine from the coupling shaft.
2	In a ship in which oil fuel is used, the arrangements for the storage, distribution and utilization of the oil fuel shall be such as to ensure the safety of the ship and persons on board. PSCO observed excessive amount of oily-water mixture in the bilge, excessive oil accumulation, oil rags and excessive trash scattered throughout the engine room.
3	The purpose of this regulation is to prevent the ignition of combustible materials or flammable liquids. For this purpose, the following functional requirements shall be met. The ignitability of combustible materials shall be restricted. PSCO observed multiple catch basins and plastic buckets throughout engine room containing oily rags and oil in liquid form.

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4	The machinery, boilers, and other pressure vessels, associated piping systems and fittings shall be of a design and construction adequate for the service for which they are intended and shall be installed and protected so as to reduce to a minimum any dangers to persons on board, due regard being paid to moving parts, hot surfaces, and other hazards. PSCO observed approximately 2 inches of pooling lube oil leaks under generators 1, 2, and 3.
5	Means shall be provided to control leaks of flammable liquids. A small LO leak was discovered on the GE/LO pump.
6	The purpose of this regulation is to prevent the ignition of combustible materials or flammable liquids. For this purpose, the following functional requirements shall be met: means shall be provided to control leaks of flammable liquids. PSCO observed excessive oil accumulation in way of jacking gear for the main engine, main engine piping below fuel injectors, below common rail and associated lagging, fuel purifier inlets, and the lowest level forward bunker station valve in the engine room.
7	To prevent the ignition of combustible materials or flammable liquids, the following requirements shall be met: means shall be provided to control leaks of flammable liquids. PSCO observed aux gen no. 2 leak around electrical configuration. Wires were zip tied and taped with oil present.
8	The purpose of this regulation is to prevent the ignition of [...] flammable liquids. the following functional requirements are met: means shall be provided to control leaks of flammable liquids. PSCO observed excessive amounts of oil in the purifier room.
9	Relief valves and air or over-flow pipes should discharge to a position which in the opinion of the Administration is safe. PSCO observed an overflow pipe for the port side #2 fuel tank that emptied into a bucket which contained standing fuel oil.
10	The machinery, associated piping systems and fittings shall be of a design and construction adequate for the service for which they are intended and shall be so installed and protected as to reduce to a minimum any danger to persons on board, due regard being paid to other hazards. PSCO observed a fuel oil leak from high pressure fuel line at cylinder #1.

09209	Working and Living Conditions/Electrical
1	Electrical Installations should be such as to minimize the risk of fire and explosion from flammable products. Observed 3 light fixtures exposed to natural elements from water inside casing. 3 light fixtures located between tank domes 1 and 2.
2	The safety of passengers, crew, and ship from electrical hazards will be ensured. PSCO observed missing panel with exposed wiring on No 2 HFO Purifier Control Panel.
3	Electrical installations shall be such that: the safety of passengers, crew and ship from electrical hazards will be ensured. PSCO observed the deck in pool machinery room on deck 9 had an excessive amount of water on it, creating shock hazard with the electrical panels in the same space.
4	Electrical installations shall be such that: the safety of crew and ship will be ensured. PSCO observed inoperable and unserviceable equipment not properly tagged/locked out in main switchboard as required by SMS procedures.
5	Electrical installations shall be such that: safety of the crew and ship from electrical hazards will be ensured. PSCO observed daisy chained power strips and multiple appliances plugged into spliced wires in ECR.
6	All electrical apparatus shall be so constructed and so installed as not to cause injury when handled or touched in the normal manner. PSCO observed multiple light fixtures overhead air compressors improperly installed w/ modified equipment.
7	In zones on open decks or non-enclosed spaces on the open deck, within 3M of any cargo tank outlet, gas or vapor outlet, cargo pipe flange, cargo compressor rooms; .1 certified safe type equipment; and .2 through runs of cables PSCO observed approximately 05 lights in cargo compressor room with improperly installed wiring and missing ground wires. Additionally, all remote valve indicators are installed in such a way that operation of cargo valves causes damage to indicator wiring. PSCO observed broken packing nuts and damaged wiring on 50% of cargo valves.

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8	The condition of the ship and its equipment shall be maintained to conform with the provisions of the present regulation to ensure that the ship in all respects will remain fit to proceed to sea without danger to the persons on board. PSCO observed bonding straps broken and/or missing on cargo deck piping systems.
9	Electrical installations shall be such that: the safety of passengers, crew and ship from electrical hazards will be ensured. PSCO identified unapproved cable spliced directly into cable box preventing electrical box closure.
10	All electrical apparatus shall be so constructed and so installed as not to cause injury when handled or touched in the normal manner. PSCO observed several dead-end wires, exposed wires, missing housing, and spliced wires throughout engine room, machinery spaces, and deck passage ways.

07199	Fire Safety/Other (fire safety)
1	The following basic principles underlie the regulations in the chapter and are embodied in the regulations as appropriate, having regard to the type of ships and the potential fire hazard involved: protection of means of escape or access for firefighting. PSCO observed wing-nut release for escape trunk from engine room was seized, preventing means of escape.
2	The purpose of this regulation is to provide means of escape so that persons on board can safely and swiftly escape to the lifeboat and liferaft embarkation deck for this purpose, the following functional requirements shall be met: escape routes shall be maintained in a safe condition, clear of obstacles. PSCO observed steel beams cargo blocking the starboard side primary egress route on the cargo main deck.
3	Doorways and corridors and intermediate landings included in the means of escape shall be sized in the same manner as stairways, shall not be less than 900mm in clear width, the minimum clear width shall be increased by 10mm for every one person provided for in excess of 90 persons. PSCO observed escape route door obstructed by multiple curtains on deck 10 starboard side in club O2.
4	The means of escape, including stairways and exits, shall be marked by lighting or photoluminescent strip indicators placed not more than 300 mm above the deck at all points of the escape route, including angles and intersections. The marking must enable passengers to identify the routes of escape and readily identify the escape exits. Additionally, escape route signs and fire equipment location markings shall be of photoluminescent material or marked by lighting. PSCO found escape routes not identified with signage in areas within the casino area.
5	The administration shall ensure that such lighting or photoluminescent equipment has been evaluated, tested, and applied in accordance with the Fire Safety Systems Code. Any required low-location lighting (LLL) systems shall be approved by the administration. The LLL in the forward passenger stairwells on decks 4,6,7 and 8 were not illuminated entirely to include the top and bottom indicators.
6	Escape doors from public spaces that are normally latched shall be fitted with a means of quick release. Such means shall consist of a door-latching mechanism incorporating a device that releases the latch upon the application of force in the direction of escape flow. Escape doors from the Victorian Lounge do not have a quick release mechanism and consists of thumb latches that do not release when force is applied to the door release mechanism. The aft door on the Piano Lounge was found to be of the same configuration.
7	In addition to the emergency lighting, the means of escape, including stairways and exits, shall be marked by lighting of photoluminescent strip indicators placed not more than 0.3m (300mm) above the deck at all points of the escape route including angles and intersections. The marking must enable passengers to identify all the routes of escape and readily identify escape exits. Low location lighting on deck 4 amidships aft near wedding chapel found not illuminating.
8	Escape routes shall be provided with clear markings for emergency situations. PSCO observed no emergency exit signage leading to escape routes in the port azipod control room.

9	The means of escape shall be marked by lighting or photoluminescent strip indicators. PSCO observed extinguished low-location lighting in the forward stairway deck 14.
10	The purpose of this regulation is to provide means of escape so that persons on board can safely and swiftly escape to the lifeboat and liferaft embarkation deck. For this purpose, the following functional requirements shall be met: escape routes shall be maintained in a safe condition, clear of obstacles. PSCO observed portable A/C units on port and stbd bridge wings with supply duct connected to bridge wing doors and blocking clear access to bridge wing means of escapes.

7120	Fire Safety/Mean of escape
1	Stairways and ladders shall be arranged to provide ready means of escape to the lifeboat and liferaft embarkation deck from all passenger and crew spaces and from spaces in which the crew is normally employed, other than machinery spaces. PSCO observed three rolls of matting obstructing the restricted yellow marked path in the electrical locker.
2	The means of escape, including stairways and exits, shall be marked by lighting or photoluminescent strip indicators placed not more than 300 mm above the deck at all points of the escape route, including angles and intersections. The marking must enable passengers to identify the routes of escape and readily identify the escape exits. Additionally, escape route signs and fire equipment location markings shall be of photoluminescent material or marked by lighting. The PSCO observed the low location photoluminescent was blocked by construction material on deck 03 FWD starboard side.
3	Escape routes shall be maintained in a safe condition, clear of obstacles. Refrigerator door, leading into vegetable room, has an inoperable handle, impeding means of escape.
4	The means of escape, including stairways and exits, shall be marked by lighting or photoluminescent strip indicators placed not more than 300 mm above the deck at all points of the escape route, including angles and intersections. The marking must enable passengers to identify the routes of escape and readily identify the escape exits. Additionally, escape route signs and fire equipment location markings shall be of photoluminescent material or marked by lighting. Inoperable low location lighting adjacent to fire door.
5	Alleyways, stairways and exits giving access to the muster and embarkation stations shall be lighted. Such lighting shall be capable of being supplied by the emergency source of electrical power. In addition, routes to muster stations shall be indicated with the muster station symbol, intended for that purpose. Insufficient exit signage in the emergency generator space, by ships main diesel generators and in the main gym that didn't lead occupants to exit.
6	Stairway enclosures in accommodation and service spaces shall have direct access from corridors and be of a sufficient are to prevent congestion, having in view the number of persons likely to use them in an emergency. Aft crew stair 10 was found to have carts and cleaning supplies in way of escape path.

4. Fleet Advisory – Compliance Emphasis.

In light of the above findings, this Administration strongly advises all Owners, Operators, and Masters to ensure strict compliance with applicable international conventions, PMA circulars, and industry best practices, with particular attention to the following:

- Merchant Marine Circular MMC-404.
Measures adopted to enhance the performance of the Panamanian Merchant Fleet – Pre-arrival checklist for ports under the Port State Control (PSC).



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- Merchant Marine Circular MMC-384.
Guidelines for appeals process against Port State Control deficiencies/detentions.

Key IMO and International References:

- SOLAS / Chapter I / Reg. 11 – Maintenance of conditions after survey.
- ISM / Part A / 10 – Maintenance of the ship and equipment.
- Resolution A.1206(34) – Procedures for Port State Control, 2025
- MSC/Circ.1070 – Ship design, construction, repair and maintenance.
- MSC.1/Circ.1253 – Shipboard technical operating and maintenance manuals

5. Strategic Focus:

This Merchant Marine Notice highlights the expectations of Port State Control Officers during inspections conducted by the United States Coast Guard and underscores the importance of:

- Effective Safety Management System implementation
- Robust onboard maintenance programs
- Proper preparation prior to arrival at U.S. ports
- Continuous compliance with statutory and operational requirements

The Panama Maritime Authority expects all Panamanian-flagged vessels to ensure full and continuous compliance with these standards. Failure to do so may result in detentions, major deficiencies, operational restrictions, and adverse impacts on the vessel's operational status and the overall performance of the Panama Registry.

February, 2026 – New.

Inquiries concerning the subject of this Merchant Marine Notice or any other request should be forward to:

Navigation and Maritime Safety Department
General Directorate of Merchant Marine
Panama Maritime Authority

Phone: (507) 501-5031

E-mail: psc@amp.gob.pa

Website: <https://panamashipregistry.com/marine-category/marine-notices/>